Small Claims Hearing Prep — July 22, 2026 (Wake County Magistrate)

Claim: Robert L. Brizzi v. Tesla, Inc. · **Amount:** $7,500 + IRS interest + court costs · **Your goal:** a money judgment. Keep it simple — Tesla certified $7,500, failed to file, you lost $7,500.

> *Not legal advice. This is an organizational aid for a pro se hearing.*

1. Bring THREE copies of every exhibit (magistrate, you, Tesla)

Put them in this order; the completed Form 15400 is your lead exhibit.

#	Exhibit	What it proves
A	**Completed Form 15400** (08/21/2025, Dan Ansari, GM)	Tesla's own completed certification that you qualify for **$7,500**
B	**IRS Notice CP23** (06/08/2026)	IRS removed exactly $7,500 (tax $28,939 → $36,439); the loss is real
C	**Tesla Order Agreement** (RN125485754)	The sale; the clause that **preserves small claims**
D	**Your emails to Tesla** (03/26–27/2026)	You demanded a fix; Tesla didn't resolve it
E	**Form 8936** (as filed)	You properly claimed the credit with the correct VIN
F	**One-page damages sheet**	$7,500 + interest = amount requested

Bring **originals** to show the magistrate; hand up the **copies**.

2. Your opening (say this, ~90 seconds)

"Your Honor, in August 2025 I bought a new Tesla Model Y and qualified for the $7,500 federal Clean Vehicle Credit. At delivery, Tesla's own general manager completed this IRS Form 15400 — Exhibit A — stating that I qualified for the full $7,500. But to make the credit real, Tesla had to file a matching report with the IRS electronically, and **they never did.** Because Tesla never filed it, the IRS disallowed my credit — Exhibit B — and billed me $7,500 plus interest. I qualified. I did everything right. I lost $7,500 solely because Tesla failed to file a report it had already completed. I'm asking for a judgment of $[7,500 + interest] plus court costs."

3. Damages — keep the math clean

- IRS removed **exactly $7,500** (Exhibit B: total tax $28,939 → $36,439).
- Plus IRS interest (was $20.58 as of 06/08/2026 — **recompute to the hearing date** and state the current figure).
- **Ask for:** $[7,500 + current interest] + court costs.

4. Anticipate Tesla's moves — and your rebuttals

If Tesla says…	You say…

"This must go to arbitration."	"Your Honor, Tesla's own Order Agreement says: *'If you prefer, you may instead take an individual dispute to small claims court.'* This forum is expressly permitted." (Exhibit C)
"We disclaim any guarantee of incentives."	"I'm not claiming a guarantee — I *was* eligible. My loss came from Tesla failing to perform a report it completed but never filed, not from any eligibility guarantee."
"It's the IRS's fault / go to the IRS."	"Only the seller can file the time-of-sale report. The IRS denied it *because* Tesla never filed. Tesla certified $7,500 in writing — Exhibit A."
"The credit ended / portal is closed."	"My car was placed in service Aug 21, 2025 — before the cutoff — so the credit is valid. Tesla was required to file and never did; if it can still be fixed, only Tesla can. Either way, I'm out $7,500 because of Tesla."
Tesla doesn't appear	"I request a default judgment, Your Honor." (Bring proof of proper service on Tesla's registered agent.)

5. Logistics / do's & don'ts

- **Confirm service** on Tesla's NC registered agent was completed and bring the return-of-service proof — improper service is the #1 reason cases get continued.
- Arrive **early**, dress neatly, address the magistrate as **"Your Honor."**
- Stick to **money owed**; stay calm and factual. **Do not** ask for pain and suffering — a magistrate awards economic loss, not emotional distress.
- Let Tesla talk; correct only facts, using your exhibits by letter.
- Have the **one-line theory** ready if interrupted: *"Tesla certified the credit, never filed it, and I got billed $7,500."*

5a. Tesla's main defense: "You attested Head of Household, income > $225k"

This is Tesla's argument. It fails on **three independent grounds** — any one wins. Your actual filed MAGI is **$212,363**, filed **Married Filing Jointly**.

1. **It contradicts the IRS's own reason.** CP23 (Exhibit B) denies for a **VIN not in IRS records** — i.e., no seller report on file — *not* income. If Tesla had filed a "HoH > $225k" report, the IRS would deny for income and say so. It didn't. The VIN-mismatch denial proves Tesla never filed the report.

   > *"Tesla says income. The IRS says the VIN wasn't in their records — meaning Tesla never filed. Tesla is arguing a reason the IRS never gave."*

2. **Eligibility is set by the filed return, not an app entry.** I filed jointly, MAGI $212,363, under the $300,000 MFJ limit. An app checkbox does not override my federal return.

   > *"The law tests my actual return, not Tesla's app. I filed jointly at $212,363 — under the limit."*

3. **Even as Head of Household, I still qualify.** The HoH limit is **$225,000**. My income ($212,363) is **under it**. So even accepting Tesla's version, I was eligible under *both* thresholds.

   > *"Even if I were Head of Household, $212,363 is under the $225,000 limit. Under any filing status, I qualified."*

Plus: Tesla completed Form 15400 (Exhibit A) in its GM's name, putting my credit at $7,500 — Tesla can't put $7,500 on its own form and then argue I didn't qualify.

4. **It should have been filed regardless — filing ≠ deciding eligibility.** The seller's duty to file the time-of-sale report is mandatory; income eligibility is decided at tax time on my return, not by a dealer choosing not to file. By never filing, Tesla blocked a credit I actually qualify for. Tesla had over nine months — including after my March 2026 written demand — and let the deadline pass. Tesla's own Form 15400 lists max credit **$7,500, not $0** — if Tesla thought I was over-income, why certify $7,500?

   > *"Tesla had to file that report regardless. Income is decided on my return — not by Tesla. They had nine months and my March-and-May 2026 demands — while the portal was still open — and let the deadline pass. That's why I'm out $7,500."*

5. **The app is not foolproof — and it's Tesla's, not mine.** It's Tesla's own error-prone system (defaults, dropdowns, employee entry); it is **not a sworn tax document**; and Tesla has refused to produce the record every time. My sworn, filed return says I qualify.

   > *"Their app isn't foolproof — it's Tesla's system, not a sworn document, and they won't produce the record. My sworn return says I qualify."*

6. **This dealer failure is nationwide and IRS-acknowledged.** Dealers across the country failed to correctly file these reports; in one case the dealership's own general manager admitted his staff "used the wrong form" loaded in their system. The IRS acknowledged the problem and reopened the portal. So a dealer data entry is not proof of buyer error — it's a documented dealer-side system failure. (See `systemic-reporting-failures.md`.)

Discipline: don't argue "did I click it or not." State you file jointly and would never select HoH, then **pivot**: "It doesn't matter — my actual return qualifies under any threshold." Demand Tesla **produce** the app record it keeps refusing to show; the burden is on Tesla, and it has withheld the document.

5b. The "mic-drop" — hand up Exhibit A and let it land

Your whole case fits on one piece of paper: **Tesla's own completed Form 15400.** Use it as the weapon. When you hand it to the magistrate, say:

> *"Your Honor, everything Tesla disputes is answered by Tesla's own form. On this form, Tesla's general manager listed — on its own form — my name, my VIN, that I took delivery for my own use, and the exact number: seven thousand five hundred dollars. Tesla wrote that. Tesla put that number on its own form. Then Tesla failed to file it. I'm not asking you to take my word for anything — I'm asking you to hold Tesla to its own."*

Then stop talking. Let the silence do the work.

Three lines to keep in your pocket (use one, don't force all three): - "Tesla certified the credit, never filed it, and sent me the bill." - "I have Tesla's own form saying I qualified, and the IRS saying Tesla never filed. Both are Tesla's doing." - "The only party who could file this report is the one that didn't — Tesla."

Rebuttal drill (say these out loud a few times before the 22nd): - Arbitration → "Their own contract preserves small claims." (Exhibit C) - Disclaimer → "I was eligible; they failed to file. Different thing." - Blame IRS → "The IRS denied it *because* Tesla didn't file." - Portal closed → "False — placed in service before the cutoff; portal stays open for registered sellers."

6. After the hearing

- If you win: get the written judgment; note how/when Tesla must pay.
- Winning here does **not** bar the separate IRS fix — keep pressing Tesla/corporate to file the ECO report so the credit itself is restored (avoid double recovery: credit any payment received).
- The **Aug 7 IRS CP23 deadline still stands** regardless of the hearing outcome — mail that response (with Sterling).